



U.S. Department
of Transportation

Research and
Special Programs
Administration

JUN 12 1996

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11712

EXPIRATION DATE: June 24, 1996

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Chemstam Company, Houston, Texas
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the shipment of a DOT Specification 111A100W tank car (GATX 22903), containing a Class 9 material, meeting all DOT requirements except that the tank car is overloaded. This exemption provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 179.13
5. BASIS. This emergency exemption is based on Chemstam Company's application of June 7, 1996, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary to preclude a serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	Identification number	Packing Group
Sulfur	9	NA 2248	III

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packaging prescribed is a DOT Specification 111A100W tank car (GATX 22903).

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8. SPECIAL PROVISIONS.

a. Shipment of the tank car is authorized via Consolidated Rail Corporation (Conrail) from U.S. Steel in Clairton, Pennsylvania, to Flexsys in Monogahela, Pennsylvania. Tank car GATX 22903, located in Clairton, Pennsylvania is authorized to destination in Monogahela, Pennsylvania, utilizing the shortest and most direct route via Conrail.

b. Persons who receive packages covered by this exemption may reoffer them for transportation provided no changes or modifications are made to the packages and all terms of this exemption are complied with.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS: The Federal Railroad Administration is to be notified if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety Enforcement
Hazardous Materials Division, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-6201 or 366-0549

11. COMPLIANCE. Failure by a person, operating under the authority of this exemption, to comply with a term or condition prescribed herein or any applicable regulation of 49 CFR Parts 106, 107 and 171-180 may result in suspension of this exemption and may subject the person to enforcement action under the Hazardous Materials Transportation Act and the Hazardous Materials Regulations. (See 49 CFR 171.2.)

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

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Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA